

M/S Munna Kashmiri Cold Storage Pvt. Ltd. v. Madhyanchal Vidhyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 14 March 2023 · WRIT - C No. 1916 of 2023 · **Writ disposed; consumer to represent to the Executive Engineer under clause 6.5B, with restoration if the recovery amount is deposited under protest.**

HEADNOTE

A cold-storage consumer's writ against a recovery notice of Rs. 10,71,849 and disconnection was disposed of without deciding the bill. The consumer must approach the Executive Engineer within one week; the representation is to be decided within two weeks in the light of clause 6.5B of the U.P. Electricity Supply Code, 2005. If the recovery amount is deposited under protest, the connection shall be restored forthwith.

FACTUAL SUMMARY

M/s Munna Kashmiri Cold Storage Pvt. Ltd. runs a cold storage at Tehsil Purwa, Unnao, on a connection from Madhyanchal Vidhyut Vitran Nigam Ltd. It says monthly bills were paid regularly. On 11 March 2022 the Executive Engineer issued a recovery notice for Rs. 10,71,849, which the company says far exceeds consumption, and supply was disconnected. The writ sought quashing of that notice, acceptance of the correct amount under the U.P. Electricity Supply Code, 2005, protection from coercive steps, and restoration.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5B

disputed recovery notice relegated to Executive Engineer

HOLDING

The writ against the recovery notice of Rs. 10,71,849 and the disconnection is disposed of by directing the consumer to approach the Executive Engineer under para 6.5 within one week. The Engineer shall decide that representation within two weeks thereafter in the light of clause 6.5B of the U.P. Electricity Supply Code, 2005. If the consumer deposits the recovery-certificate amount under protest, the connection shall be restored forthwith. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking quashing of a disputed recovery notice, a bar on coercive steps, and restoration was disposed of, the consumer being left to represent to the Executive Engineer under para 6.5 of the Supply Code. ¶ 1-2

clause-6.5b-quantification-dispute The claim that Rs. 10,71,849 far exceeds consumption was not tried on writ; the Executive Engineer must decide the representation in the light of clause 6.5B within two weeks of a representation filed within one week. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS. 10,71,849 EXCEEDS CONSUMPTION AT THE COLD STORAGE AND WHAT THE CORRECT BILL IS

Left to the Executive Engineer under clause 6.5B; restoration is only if that sum is deposited under protest. ¶ 1-2

